

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer:

Initials

Date

Agent:

Chief:

To be completed by City/County Clerk

License Fees Annual Fee: \$ 1050.00

Prorated Fee: \$

Transfer Fee: \$

Publishing Fee: \$ 100.00

Publishing Fee Direct Billed to Applicant: ☐

Local License #:

Date filed with clerk:

Advertising Dates: (2 Weeks)

4-29-2021 & 5-7-2021

Hearing Date:

License Term:

Month

Day

Year

Through

Month

Day

Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant: Tres Amigos Incorporated

Trade/Business Name (dba): Tres Amigos Family Mexican Restaurant

Building to be licensed/Building Address: 2414 W Lincolnway

Number & Street

Cheyenne

City

WY

State

82001

Zip

Laramie

County

Mailing Address: 2633 Marshfield Lane

Number & Street or P.O. Box

Fort Collins

City

CO

State

80524

Zip

Business Telephone Number: (970) 631-9875

Fax Number: ()

E-Mail Address: linguez215@gmail.com

Brief legal description and the zoning of the licensed building or site for licensed building: W.S. 12-4-102 (a) (vi)

5,881 square feet. Lot 2A Block 7, Dan subdivision. CB

FILING FOR

☒ NEW LICENSE

☐ TRANSFER OF LOCATION

FILING IN (CHOOSE ONLY ONE)

☒ CITY OF: Cheyenne

☐ COUNTY OF:

FILING AS (CHOOSE ONLY ONE)

☐ INDIVIDUAL

☐ PARTNERSHIP

☐ LP/LLP

☐ LLC

☒ CORPORATION

☐ LTD PARTNERSHIP

☐ ORGANIZATION

☐ OTHER

☐ TRANSFER OWNERSHIP

☐ ASSIGNMENT LETTER ATTACHED

FORMERLY HELD BY:

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE

☐ ON-PREMISE ONLY (BAR)

☐ OFF-PREMISE ONLY (PACKAGE STORE)

☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)

☒ RESTAURANT LIQUOR LICENSE

☐ RESORT LIQUOR LICENSE

☐ BAR AND GRILL

LIMITED RETAIL (CLUB)

☐ VETERANS CLUB

☐ FRATERNAL CLUB

☐ GOLF CLUB

☐ SOCIAL CLUB

☐ MICROBREWERY

☐ WINERY

☐ DISTILLERY SATELLITE

☐ WINERY SATELLITE

☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS

☐ CONVENTION FACILITY

☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM

☐ GOLF CLUB

☐ GUEST RANCH

☐ RESORT

To Assist the Liquor Division with scheduling inspections: **WHEN DO YOU OPERATE?**

☒ FULL TIME (e.g. Jan through Dec)

☐ SEASONAL/PART-TIME

☐ NON-OPERATIONAL/PARKED

(specify months of operation)

DAYS OF WEEK (e.g. Mon through Sat)

HOURS OF OPERATION (e.g. 10a - 2a)

from January to December

from Monday to Sunday

from 11:00am to 9:00pm

ALL APPLICANTS MUST COMPLETE QUESTIONS 1-6

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103 (a) (iii)

(1) **OWN** the licensed building?

☐ YES (own)

(2) **LEASE** the licensed building? (Lease must be through the term of the liquor license)

☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

(A) When the lease expires, located on page 1 paragraph 3 of lease.

(B) Where the **Sales** provision for alcoholic or malt beverages is located, on page 8 paragraph 29 of lease. (MUST contain a provision for **SALE OF ALCOHOLIC** or **MALT BEVERAGES**.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601 (b)

☐ YES ☒ NO
3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

(a) Hold any interest in the license applied for?

☐ YES ☒ NO

(b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business?

☐ YES ☒ NO

(c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO

(d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103 (b)

☐ YES ☒ NO
- If "YES", explain:

5. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102 (a) (ii) & (iii)
- Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

6. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102 (a) (iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Jonathan Garcia Iniguez	9/7/91	2633 Marshfield Ln Fort Collins, CO 80524	970.631. 9875	N/A	33.3	YES ☐ NO ☒	YES ☐ NO ☒
Ahias Nain Ambrosio	7/31/95	4412 E. Mulberry St. #13 Fort Collins, CO 80524	970.692 6886	N/A	33.3	YES ☐ NO ☒	YES ☐ NO ☒
Gustavo Camolunga	8/23/84	2633 Marshfield Ln Fort Collins, CO 80524	970.308 6776	N/A	33.3	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

7. **BAR AND GRILL LICENSE:**

Have you submitted a valid food service permit or application? W.S. 12-4-413 (a) ☐ YES ☐ NO

8. **RESTAURANT LICENSE:**

(a) Give a description of the dispensing room(s) and state where it is located in the building. W.S. 12-4-408 (b)
(e.g. 10 x 12 room in SE corner of building): North west corner 11x10

(b) Have you submitted a valid food service permit or application? W.S. 12-4-407 (a) ☒ YES ☐ NO

(c) Have you attached a drawing of the establishment that includes the restaurant dispensing room(s)? W.S. 12-4-410 (f) ☒ YES ☐ NO

9. **RESORT LICENSE:**

Does the resort complex:

(a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO

(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO

(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO

(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

10. **MICROBREWERY LICENSE:**

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT ☐ BAR AND GRILL ☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
(Requires wholesaler license with the Liquor Division)

(c) Do you distribute your products through an existing malt beverage wholesaler? W.S. 12-2-201(g)(i) (Requires authorization to sell license with the Liquor Division) ☐ YES ☐ NO

11. **WINERY LICENSE:**

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT ☐ BAR AND GRILL ☐ MICROBREWERY

12. **LIMITED RETAIL (CLUB) LICENSE:**

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

(a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO

(b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. **LIMITED RETAIL (CLUB) LICENSE:**

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

(a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO

(b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. **LIMITED RETAIL (CLUB) LICENSE:**

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

(a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO

(b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

(c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO

1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO

2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

15. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located?

☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state?

☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service?

☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year?

☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues?

☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club?

☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application?

☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached)

☐ YES ☐ NO

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- ☒ Restaurants: include a drawing of the establishment that includes the dispensing room(s) W.S. 12-4-410 (f).
- ☒ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a) (iii)/ W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

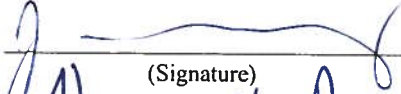
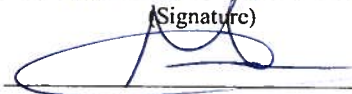
OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

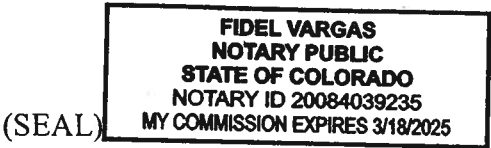
Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Colorado)
WYOMING) SS.
COUNTY OF Larimer)

Signed and sworn to before me on this 13 day of April, 2021 that the facts alleged in the foregoing instrument are true by the following:

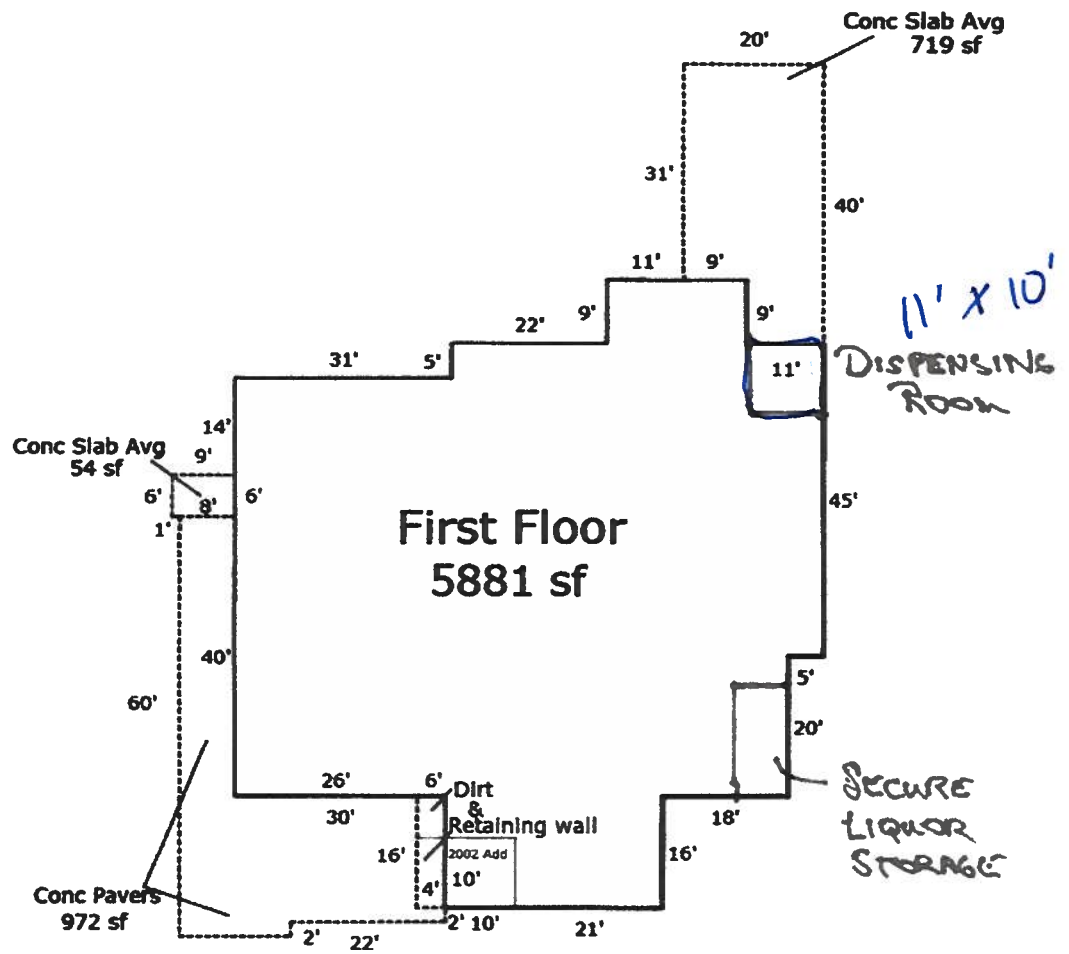
1)	 (Signature)	<u>Jonathan Iniguez</u> (Printed Name)	<u>Partner</u> Title
2)	<u>Alfonso N Ambrosio</u> (Signature)	<u>Alfonso N Ambrosio</u> (Printed Name)	<u>partner</u> Title
3)	 (Signature)	<u>GUSTAVO CAMBRINGA MONTE</u> (Printed Name)	<u>PARTNER</u> Title
4)	 (Signature)	 (Printed Name)	 Title
5)	 (Signature)	 (Printed Name)	 Title
6)	 (Signature)	 (Printed Name)	 Title

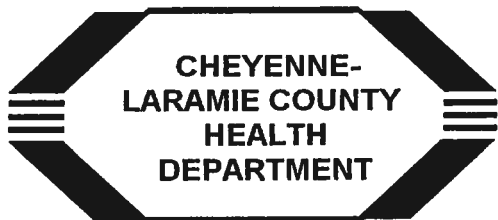
Witness my hand and official seal:




Signature of Notary Public

My commission expires: 3-18-2025





REC-1117
103
PAID
\$360.00 C#1001

APR 08 2021
Cheyenne/Laramie County Health Department
Division of Environmental Health
100 Central Ave
Cheyenne, Wyoming 82007
307-633-4090 Fax 307-633-4038
www.laramiecounty.com

FOOD SERVICE PLAN REVIEW WORK SHEET

ESTABLISHMENT NAME: TRES AMIGOS FAMILY MEXICAN RESTAURANT

ESTABLISHMENT ADDRESS: 2414 W. LINCOLNWAY, WY 82001

ESTABLISHMENT PHONE NUMBER: 970-631-9875

FAX NUMBER: N/A

EMAIL ADDRESS: liniquez15@gmail.com

CONTACT PERSON: Jonathan Iniguez

OWNER NAME: Jonathan Iniguez

OWNER ADDRESS: 2633 Marshfield Ln, Fort Collins, CO 80524

OWNER PHONE NUMBER: 970-631-9875

NOTE: This plan review will be good for 12 months past the date of submission. After the expiration date, a new plan review and the appropriate fee will need to be resubmitted.

Submit the following along with this questionnaire:

1. One complete set of floor plans showing layout of equipment and mechanical layout.
2. Complete menu.
3. SOP outlining cooling and reheating procedures for any PHF/TCS foods.
4. Specifications on equipment (including shelving) showing NSF or equivalent approvals.
5. Plan review fee enclosed see fee schedule attached for amount due.

1. Will this establishment be: Temporary or X Permanent
 Mobile or Stationary

2. Do your managers or employees have food safety training? If yes, please list type of training below.

Yes, servsafe Jonathan Iniguez

3. What is the seating capacity of your facility? 178

4. Will this establishment do any catering outside the establishment? NO

5. Does your establishment have a HACCP plan? Yes X No
a) If yes please include 1 copy of HACCP plan and logs

Mayor Patrick Collins and members of City Council,

I hope this letter finds you well during the hard times that we are all currently facing. I am writing to you today to introduce ourselves as a new small business in the city of Cheyenne, WY. We are Tres Amigos Incorporated, doing business as Tres Amigos Family Mexican Restaurant. We have a proposed business site of 2414 W Lincolnway, Cheyenne WY 82001.

There are three partners in this business, Gustavo Camorlinga, Ahias Ambrosio, Jonathan Iniguez. We have all been friends for many years, and together we have 33 years of combined experience in the restaurant business. After a lot of thought, we have decided to go into business together and truly believe that your community is the perfect place to begin our journey.

We have built a full menu with delicious options for everyone that include small platters up to large combinations and unique house specialties, not to mention the amazing cocktails and margaritas that we have worked hard to perfect that the community will enjoy while experiencing a relaxed environment and great customer service. we can accommodate customer in our larger dining area and larger parties or work events in a more secluded part of the building.

I appreciate this opportunity to introduce our company and services to you and express my eagerness to get started and bring a new Mexican Restaurant to you your city. If you have any questions or concerns, please contact me at any time.

Respectfully,



Jonathan Iniguez
Tres Amigos Incorporated
970.631.9875
Jiniguez15@gmail.com

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF NAME CHANGE

Current Name: Tres Amigos Incorporated
Old Name: Tres Amigos Inc.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **29th** day of **January, 2021**



Filed Date: 01/29/2021

Edward A. Buchanan
Secretary of State

By: Austin Stege

Employees of Tres Amigos Family Mexican Restaurant have taken courses in alcohol training in the year 2020 in the state of Colorado, we plan on getting TIPS certified in the state of Wyoming to comply with city code chapter 5.12 requirements.

Jonathan Iniguez
Tres Amigos Incorporated
970.631.9875
Jiniguez15@gmail.com

COMMERCIAL BUILDING LEASE

Lessee

This lease made and entered into this 12 day of October 2020, by and between
~~Jonathan Garcia Iniguez, Abian Main Ambrosio Gonzales, and Gustavo Concepcion Monge~~
(Lessee) and MY Asian Bistro Realty LLC (Lessor).

TRES AMIGOS
INCORPORATED

accepted as lessor

WITNESSETH:

For and in consideration of the premises and of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

1. **Leased Area:** Lessor hereby leases the building at 2414 W. Lincolnway, Cheyenne in the County of Laramie, State of Wyoming, unto the Lessee, and the Lessee hereby hires and takes from Lessor 5,580 square feet, more or less, of restaurant space.

2. **Tenant's Acceptance of Property:** Neither Lessor nor its agents have made any representations with respect to the leased property except as expressly set forth herein and no rights, easements, or licenses are acquired by Lessee by implication or otherwise, except as expressly set forth in the provisions of this lease. The taking of possession of the leased property by the Lessee shall be conclusive evidence that the Lessee accepts the same "as is" and that the leased property was in good condition at the time possession was taken.

3. **Term:** The term of this lease shall be ten years and commence as of the 1st day of February 2021, and end on the 31 January 2030. The payments under this lease begin with the ~~January 1~~ 2021 payment.

M2

February 1

4. **Base Rent:** The Lessee covenants and agrees to pay as base rent the following annual amounts:

Year 1 [REDACTED]
Year 2 [REDACTED]
Year 3 [REDACTED]
Year 4 [REDACTED]
Year 5 [REDACTED]
Year 6 [REDACTED]
Year 7 [REDACTED]
Year 8 [REDACTED]
Year 9 [REDACTED]
Year 10 [REDACTED]

The above outlined fees shall be paid in monthly installments on the 1st day of each month. In the event any fee required hereunder is not paid within five (5) days after the

due date there will be a late fee of five percent (5%) of the payment due to defray Lessor's administration or handling costs. In addition, such late sums shall earn simple interest at the rate of one and one half percent (1 1/2 %) per month, upon the giving of prior written notice by Lessor, until paid. Such interest shall be due and owing whether Lessor elects to terminate the lease or waive the default.

5. **Utilities:** The Lessee is responsible for all utilities related to the Leased Property and shall transfer the Cheyenne Light Fuel and Power, and the Board of Public Utilities accounts to their names.

6. **Use of Premises:** The Lessee shall have the right and privileges to occupy the premises for the purpose of a restaurant.

The Lessee shall, at all times during the term hereof, actively use the leased areas for the purpose herein specified and shall not at any time leave any part of the leased area vacant for a period of thirty (30) days without Lessor's prior written consent.

7. **Alterations:** Any remodeling or alterations must have the prior written approval of Lessor. Any remodeling or alterations which take place without Lessor's prior written approval shall be removed and the premises returned to its original condition, at Lessor's request, and at the Lessee's sole expense. Title to all improvements constructed or installed by the Lessee in or on the demised premises (except trade fixtures or case goods which can be removed without damage to the property), and all materials forming part thereof, shall pass to Lessor as the same or any part thereof are constructed or installed or otherwise affixed to said premises.

8. **Maintenance & Property Management:** Lessee is responsible for all inside and outside maintenance, Lessee is also responsible for snow removal from walk ways, parking lot and areas immediately around the premise as well as landscape maintenance. The Lessee shall be responsible for trash and refuse removal. The Lessor is responsible for and shall keep and maintain the roof and structural portions of the leased premises.

9. **Assignment and Subletting:** The Lessee shall not assign, transfer, mortgage, pledge or sublet its rights in this lease nor grant any concession hereunder, in whole or in part, without the prior written consent of Lessor. Lessor's consent will not be unreasonably withheld.

10. **Minority Business Enterprises:** Lessee hereby assures that no person shall be excluded from participation in, denied benefits of, or otherwise discriminated against, in connection with the award and performance of any contract including leases covered by 49 Code Federal Regulations, Part 23, on the grounds of race, color, national origin or sex. Lessee further assures that it will include the language of this paragraph in all

sub-leases and cause all sub-leases to similarly include this clause in further sub-leases.

11. Compliance with Laws. The Lessee covenants that it will use the demised premises in accordance with all applicable laws and ordinances as well as in compliance with regulations either governing or adopted by Lessor for the management, control and operation of said premises.

12. Signs: Lessee shall not paint or maintain any signs whatsoever, upon the demised premises without the prior written permission of Lessor. Lessor agrees to install sign panels provided by Lessee upon the pole sign adjacent to the premises. Lessor agrees to install said panels at Lessors expense. Lessee agrees to provide sign panels at Lessees expense.

13. Right of Inspection: Upon reasonable notice and not to interfere with Lessor's business, Lessor reserved and retains for its officers, employees and authorized representatives the full and unrestricted right to enter the premises for the purpose of inspecting or protecting such premises and of doing any and all things which Lessor deems necessary for the proper general conduct and operation of said premises.

14. Cancellation and Termination: Lessor may cancel and terminate this lease, and may repossess the premises, with or without process of law, without liability, in the event any installment of rent, or other payment provided for herein, is in arrears, and remains unpaid for fifteen (15) days after written notice is given that the same is due. In the event of a default as to any other provision of this lease, Lessor shall give thirty (30) days written notice to Lessee of its intention to so terminate, at the end of which time all the rights of Lessee hereunder shall terminate unless such default, which shall have been stated in such notice, shall have been cured within such thirty (30) days; provided, however, the Lessee shall be allowed only two such notices in any twelve (12) month period which it may cure within the time specified in this paragraph. The third such notice in any twelve (12) month period shall be final and shall cancel and terminate all of the rights hereunder of the Lessee, without any right on the part of the Lessee to cure default after receiving such notice.

Further, in the event the Lessee shall engage in any activity or practice (except as herein specifically permitted) which hinders or interferes with the proper use and operation of said premises, then Lessor may order the Lessee to forthwith cease and desist from such activity or practice, and should the Lessee fail or refuse to comply with any such written order within thirty (30) days, then Lessor may at its option cancel and terminate this lease.

In the event of cancellation and termination of this lease by Lessor as herein provided, the Lessee shall be liable to Lessor for the balance of the rent herein reserved and all costs of collection, including reasonable attorney's fees, subject to

Lessor's duty to mitigate its damages by re-leasing the premises within a reasonable period of time. In addition, Lessor may recover from Lessee, a pro-rata share of the real estate commission paid to facilitate this lease.

15. **Taxes, Licenses, Debts:** The Lessee covenants and agrees to pay promptly all valid sales taxes, excises, license fees, permit fees, bills, debts and obligations incurred by it in connection with its operation of said business on the leased premises, and not permit the same to become delinquent and to suffer no lien, mortgage, judgment or execution to be filed against said property or improvements thereon which will in any way be an impairment to the right of Lessor under this lease. Lessee shall provide proof of payment to Lessor upon request. Lessee shall be responsible for real estate taxes.

16. **Insurance:** At all times during the term of this lease, and of any renewal or extension hereof, Lessee agrees that it will at its own cost and expense, provide and keep in force for the benefit of the Lessee policy or policies of insurance as follows:

Personal property and liability insurance on Lessee's property stored or kept on the demised premises in an amount of Lessee's choosing. Lessee shall provide proof of payment to Lessor upon request. Lessee shall be responsible for building insurance.

17. **Indemnification of Lessor Against Claims of Personal Injury or Property Damage:** Lessee shall defend, indemnify and hold Lessor harmless from and against any claim, loss, expense or damage to any person or property in or upon the leased premises or any area allocated to or used exclusively by Lessee or its agents, employees, or invitees, arising out of Lessee's use or occupancy of said premises, or any act or neglect of Lessee or Lessee's servants, employees, or agents, or any change, alteration or improvement made by Lessee in the leased premises, unless it is the result of Lessor negligence.

18. **Waivers:** No waiver or default by Lessor of any of the terms, covenants or conditions to be performed, kept and observed by the Lessee shall be construed as, or operate as, a waiver by Lessor of any subsequent default of any of the terms, covenants or conditions herein contained to be performed, kept and observed by the Lessee.

19. **Surrender and Holding Over:** The Lessee covenants that at the expiration of the period for which the demised premises are leased to it, or at the earliest termination of the term thereof, it will quit and surrender said premises in good state and condition, reasonable wear and tear excepted. Should the Lessee hold over the use of or continue to occupy the demised premises after expiration of the lease, such holding over will be as a tenant at sufferance for which use it shall pay rent at double the amount herein provided and in addition be liable for any and all damages resulting from such tenancy.

20. **Quiet Enjoyment:** Lessor covenants for itself, its successors and assigns that Lessee, upon payment of the rent and performance of Lessee's other covenants herein, shall and may peaceably and quietly have, hold and enjoy the demised premises during the term of this lease.

21. **Notices:** Any notices required or given hereunder shall be given by first class mail, telegram, or personal delivery addressed to the respective addresses below, or such other address as may be specified in writing from time to time:

Lessee MY Asian Bistro Realty
733 Rodeo Ave
Cheyenne WY 82009

Lessor: TRCS AMIGOS INCORPORATED
2633 Marshfield Ln
Fort Collins, CO 80524

22. **Security:** In addition to Lessee's responsibilities to maintain the premises as provided herein, it shall particularly maintain the premises in such a manner as to keep them secure from unauthorized intrusion. Lessee is responsible for insuring that doors to the building are secured after working hours when Lessee's personnel leave the building.

23. **Termination of Lease Upon Condemnation - Rent Apportionment Entire Award to Lessor:** If the leased property, or any part thereof is taken by eminent domain or sold under the threat of the exercise of said power (all of which are herein called "condemnation"), this lease shall expire on the date when the leased property shall be so taken, and the rent shall be apportioned as of that date. No part of any award shall belong to the Lessee.

24. **Parking:** Parking areas adjacent to the leased premises are for the exclusive use of Lessee.

25. **Restoration by Lessor of Property Destroyed by Insured Casualty/Tenant to Replace Trade Fixtures/ --Proportionate Rent Abatement/ Lessor Option to Terminate.** If the leased premises or the building containing it should be damaged or destroyed during the lease term by fire or other insurable casualty without the fault of Lessee, Lessor shall, subject to the time that elapses due to adjustment of the fire insurance, repair and/or restore the same to substantially the condition it was in immediately prior to such damage or destruction, except as in the Article provided. Lessor obligation under this Article shall in no event exceed the scope of the work required to be done by Lessor in

the original construction of the building. Rent payable under the lease shall be abated proportionately according to the floor area of the leased premises which is usable by the lessee, but if such damage was caused by the fault of lessee, there shall be no abatement of rent unless covered by insurance. Such abatement shall continue for the period commencing with such damage or destruction and ending with the completion by Lessor of such work or repair and / or reconstruction as Lessor is obligated to do. If, however, the leased premises or the building containing it should be damaged or destroyed by any cause so that Lessor shall decide to demolish, abandon, or completely rebuild the lease premises of the building containing it, Lessor may, within thirty (30) days after such damage or destruction, give lessee written notice of such decision and thereupon this lease shall be deemed to have terminated as of the date of the damage or destruction and lessee shall immediately quit and surrender the leased premises to Lessor.

26. Other Agreements:

A) Declaration of Governing Law. This lease shall be governed by, construed, and enforced in accordance with the laws of the State of Wyoming.

B) Plural, Singular, Gender to be Read in Context. Any word contained in the text of this lease shall be read as the singular or the plural and as the masculine, feminine or neuter gender as may be applicable in the particular context.

C) Joint and Several Obligation of Lessee, Partners. If there is more than one party tenant, the covenants of the Lessee shall be joint and several obligations of each such party, and, if the Lessee is a partnership, the covenants of the Lessee shall be the joint and several obligations of each of the partners and the obligations of the firm.

D) Binding Effect on Parties, Representatives, Successors and Assigns. The provisions of this lease shall be binding on and inure to the benefit of the parties, their legal representatives, successors and permitted assigns.

E) Parties Have Relationship of Landlord and Tenant - Not Principal Agent, Partners or Joint Ventures. Nothing contained in this lease shall be deemed or construed to create the relationship of principal and agent or of partnership or of joint venture or of any association whatsoever between Lessor and Lessee, it being expressly understood and agreed that neither the computation of rent nor any other provisions contained in this lease nor any act or acts of the parties hereto shall be deemed to create any relationship between Lessor and Lessee other than the relationship of landlord and tenant.

F) Captions for Convenience - Not Part of Lease - Not to Limit or Amplify Lease. The captions of this lease are for convenience only, are not a part of the lease, and do not in any way limit or amplify the terms and provisions thereof.

G) Prior Representations Incorporated Into Lease - No Representations, Warranties or Promises by Landlord, Agents or Representatives. All negotiations, considerations, representations and understandings between the parties are incorporated in this lease, and Lessee acknowledges that Lessor, its agents and representatives, have made no

representations, warranties or promises with respect to the leased premises except as may be expressly set forth herein.

I) Severability of Invalid or Unenforceable Clause-Remainder of Lease Enforceable- Clause Applicable to Other Persons and Circumstances. If any clause, phrase, provision or portion of this lease or the application thereof to any person or circumstance shall be invalid, or unenforceable under applicable law, such event shall not affect, impair or render invalid or unenforceable the remainder of this lease, nor any clause, phrase, provision or portion hereof, nor shall it affect the application of any clause, phrase, provision or portion hereof to other persons or circumstances.

J.) Force Majeure: In the event that the Landlord or Tenant shall be delayed or hindered in or prevented from the performance of any act other than Tenant's obligation to make payments of rent, additional rent, and other charges required hereunder, by reason of restrictive governmental laws or regulations, war, natural disasters (earthquakes, hurricanes, floods), riots or other major upheavals then performance of such act shall be excused for the period of the delay and the period for the performance of such act shall be extended for a period equivalent to the period of such delay. Notwithstanding the foregoing, lack of funds shall not be deemed to be a cause beyond control of either party.

26. Deposit and Security: A deposit in the amount of Six Thousand Nine Hundred Dollars (\$6,900) is due at time of signing of this lease by Lessee. This deposit shall be held by Lessor without interest and shall not be used by Lessee toward payment of rent. The Lessor shall return the Security Deposit to Lessee within 30 days of the end of this tenancy, less such deductions as provided in this Lease but no deductions will be made for damage due to reasonable wear and tear.

27. Furniture, Fixtures, Equipment and Operating Systems: This Lease shall include all Furniture, Fixtures and Equipment presently on the premises; including but not limited to tables, chairs, stove, oven and various kitchen racks. Lessor shall inspect all Equipment, Fixtures, Operating Systems and Roof and shall make any necessary repairs to these items to insure they are in good and working condition, prior to possession of the premises by Lessee.

28. Possession Prior to Lease Commencement: Lessor agrees to allow Lessee to take possession of the Premises on November 1, 2020. Lessee shall not be obligated to pay the base rent during this 90 day period prior to lease commencement. The Lessee shall, however, be required to pay utilities and HVAC charges during this period.

29. **Liquor Sales:** Lessor agrees that the Lessee may sell alcoholic beverages at this location during the term of the lease and any agreed upon extensions to this lease.

30. **Option to Purchase:** Provided the Lessee is not currently in default in the performance of any term of this Lease, the Lessee shall have the option to purchase the Premises. Said option to purchase shall commence after the 24 month of this Lease and shall expire at the termination or expiration of this Lease. In consideration of the Lessor granting the Lessee this Option, the Lessee shall pay to the Lessor the sum of Ten Thousand Dollars (\$10,000) as the Option Fee. The Option Fee shall be paid to Lessor on or before the end of the 24 month of this Lease or the Option to Purchase shall terminate. Should the Option be exercised and the Lessee closes on the purchase of the premise, the Option Fee will apply to the purchase price at closing. Should the Lessee fail to close on the purchase of the premise, the Option Fee shall be forfeited to the Lessor.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed this 12 day of OCT, 2020.

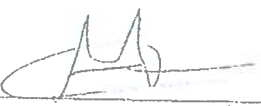
By Lessee:



By Lessee:

Amias N. Ambrosio

By Lessee:



By Lessee:



Tres Amigos Family Mexican Restaurant Food and Alcohol Menu

Small Combinations

1. Chile Relleno
2. Enchilada
3. Taco
4. Tostada
5. Tamale

Medium Combinations

1. Two Enchiladas
2. Two Tacos
3. Taco and Enchilada
4. Chile Relleno and Enchilada
5. Tostada and Enchilada
6. Tamale and Enchilada
7. Two tamales
8. Enchiladas Suizas
9. Enchiladas Chipotle
10. Taco and Chile Relleno
11. Chimichanga
12. Two Chile Rellenos
13. Vegetarian Enchiladas
14. Spinach Enchiladas
15. Cheese Dip Enchiladas

Large Combinations

1. Enchilada Tricolor
2. Three Enchiladas
3. Three Tacos
4. Taco and Two Enchiladas
5. Two Burritos
6. Burrito and Enchilada Or Taco
7. Enchiladas Rancheras
8. Enchiladas Rancheras
9. Enchiladas Tres Amigos
10. Two Chimichangas
11. Chimichanga, Tamale, Enchilada
12. Chile Relleno, Tostada, Enchilada
13. Chalupa, Enchilada, Chile Relleno
14. Taco, Enchilada, Chile Relleno
15. Enchilada, Taco, Tamale
16. Chalupa, Chile Relleno, Tamale

Chicken

- 1. Chicken Chipotle**
- 2. Chicken en Mole**
- 3. Arroz con Pollo**
- 4. Pollo Fundido**
- 5. Chicken Stir Fry**
- 6. Pollo Asado**
- 7. Pollo Culichi**
- 8. Cheese Dip Pollo**
- 9. Pollo a la crema**
- 10. Chori-Pollo**
- 11. Pollo Relleno**

Seafood

- 1. Camarones a la crema**
- 2. Ceviche**
- 3. Aguachile**
- 4. Camarones al mojo de ajo**
- 5. Mariscos jarochos**
- 6. Camarones a la diablo**
- 7. Camarones Empanizados**
- 8. Camarones chipotle**
- 9. Camarones Huichol**
- 10. Fish Tacos**
- 11. Shrimp Tacos**
- 12. Camarones con tocino**
- 13. Camarones portugueses**
- 14. Mariscos Tres Amigos**
- 15. Pescado Empanizado**
- 16. Pescado al gusto**
- 17. Seafood Chimichanga**
- 18. Seafood Burrito**
- 19. Seafood Enchilada**
- 20. Filete Culichi**
- 21. Mojarra Frita**
- 22. Molcajete De Marisco**
- 23. Mariscada**
- 24. Arroz con camaron**

Burritos

1. Bean Burrito
2. Beef and bean Burrito
3. Vegetarian Burrito
4. Colorado Burrito
5. Pork Chile Verde Burrito
6. Burrito Carnitas
7. Burrito Loco
8. Carne Asada Burrito
9. California Burrito
10. Burrito al pastor
11. Fajita Burrito
12. Grilled Chicken Burrito
13. Burrito de chorizo
14. Burrito Deluxe
15. Burrito Chipotle
16. El Burrito Grande
17. Burrito Blanco

Tostadas

1. Pork chile verde tostada
2. Shredded beef tostada
3. Bean tostada
4. Chicken tostada
5. Ground beef tostada

Kids Meals (KIDS EAT FREE ON MONDAY)

1. Nachos
2. Chicken Tenders
3. Mac and Cheese
4. Cheese Burger
5. Burrito
6. Enchilada
7. Taco
8. Cheese crispy
9. Grilled cheese
10. Chicken Tenders

House Appetizers

1. Ostiones
2. Shrimp Quesadilla
3. Fajita Quesadilla
4. Hot Wings
5. Sampler (Hot wings, mozzarella sticks, jalapeno poppers)
6. Taquitos Rancheros
7. Mexican Pizza
8. Cheese crispy
9. Cheese dip
10. California fries
11. Camarones Huichol
12. Camarones al gusto
13. Flautas
14. Nachos Supreme
15. Jalapeno Poppers
16. Guacamole Salad
17. Queso Fundido
18. Mozzarella Sticks
19. Steak Quesadilla
20. Garlic mushrooms
21. Portugues and Wings

Caldos

1. Siete mares
2. Menudo
3. Tortilla soup
4. Caldo de res
5. Chile verde soup
6. Albondigas

Side Orders

1. Enchilada
2. Tamale
3. Taco
4. Chimichanga
5. Chalupa
6. Burrito
7. Pico de gallo
8. Shredded cheese
9. Guacamole
10. Shredded cheese

Tres Amigos Specialties

1. Carne Asada
2. Molcajete Tradicional
3. Steak Tampiquena
4. Steak Torero
5. Tres Amigos (Camarones portugueses, Grilled chicken, Carne Asada)
6. Chile Colorado
7. Pork Chile Verde
8. Pork Shanks
9. Chuleta De Puerco
10. Dos Amigos (Camarones a la diablo, Carne Asada)
11. Tacos al carbon
12. Sopas Mexicanos
13. Tacos al Pastor
14. Tacos de Picadillo
15. Fajita Tacos
16. Parillada
17. Baja Tacos
18. Skinny Tacos

Tortas

1. Torta de carnitas
2. Torta ahogada
3. Torta al pastor
4. Torta de jamon
5. Torta de chorizo
6. Torta supreme

Street Tacos

1. Asada, pastor, chorizo, Carnitas

Fajitas

1. Steak Fajitas
2. Chicken Fajitas
3. Vegetarian Fajitas
4. Chicken and steak Fajitas
5. Chicken and shrimp Fajitas
6. Steak and shrimp Fajitas
7. Fajitas Tres Amigos

Breakfast

1. **Breakfast burrito**
2. **Chilaquiles rojos or verde**
3. **Huevos con chorizo**
4. **Huevos rancheros**
5. **Huevos con jamon**
6. **Carne asada and eggs**
7. **Huevos a la Mexicana**

Omelet

1. **Spinach omelet**
2. **Supreme omelet**
3. **Veggie omelet**
4. **Denver omelet**

Salads

1. **Grilled Chicken Salad**
2. **Shrimp Caesar salad**
3. **Ranchero Salad**
4. **Tropical Salad**
5. **Fajita Salad**
6. **Taco Salad**
7. **Carne Asada Salad**

Cocktails

1. Pina colada
2. Almond Joy
3. Sangria
4. Long Island iced tea
5. Cantarito
6. Mudslide
7. Mai Tai
8. Daquiri
9. Screwdriver
10. Tequila sunrise
11. Paloma
12. Mojito
13. Cuba Libre
14. Mimosa
15. Corona sunrise
16. Sleep on the beach
17. Blue Hawaiian
18. Michelada
19. Vampiro

Margaritas

1. Margarita sunset
2. Cadillac Margarita
3. Original Margarita
4. Skinny Margarita
5. 1800 Margarita
6. Herradura Margarita
7. Patrol Margarita
8. Don Julio Margarita
9. Corralejo Margarita
10. Cazadores Margarita
11. Amigos Margarita
12. Gold Margarita
13. Jalapeno Margarita
14. Italian Margarita
15. Corona Rita Margarita
16. Flavored Margarita

Tequilas

Don Julio , patron, corralejo, clase azul, herradura, jimador, cazadores, hornitos, Jose Cuervo Gold, 7 Leguas, Maestro Dobel, Casa Amigos, Centenario, 1800 Tequila, Milagro, Corazon

Others:

Jack Daniels, Jim Bean, Captain Morgan, Wild Turkey, Buchanans, Remy Martin, Titos, Stolichanya, absolut, Grey Goose, Crown Royal, Martell, Henessy, Johnny Walker, 7&7